



DECISION

Complaint No. : POS/4436/KR-115/2024

Name and address of the complainant : Mr. Abdul Malik,
R/o. House No. 420, Sector 8/F, Gulzar Colony,
Korangi, Karachi

Name of the Agency Complained against : Sindh Environmental Protection Agency

Name & Designation of Investigating Officer : Mr. Muhammad Shoaib Ahmed Siddiqui,
Advisor-in-Charge, R.O Korangi

Vetted by : Mr. Ghulam Abid Shaikh,
Advisor-K

Subject :

**ALLEGED INACTION ON THE COMPLAINTS
MADE AGAINST ESTABLISHMENT OF STEEL
STRUCTURE FABRICATION FACTORY IN
RESIDENTIAL AREA CAUSING NUISANCE AND
OTHER PROBLEMS.**

COMPLAINT

Mr. Abdul Malik and others, filed a complaint on 25.09.2024, alleging that a workshop had been illegally established in their residential area. It was stated that the operation of heavy machinery is causing excessive noise and strong vibrations creating disturbance and affecting the peaceful living of residents. The complainant further alleged that despite approaching the concerned authorities no action was taken. They further alleged that the factory is operating in violation of the Sindh Environmental Protection Act and its Rules. Being aggrieved, they sought the intervention of this Institution.

PROCEEDINGS

2. The matter was referred to the Director (LTR) TMC Shah Faisal Town for comments. He vide letter dated: 13.12.2024 stated that the site is located in an Industrial Area, and that the complaint did not pertain to his department.
3. Consequently, the matter was forwarded to Regional Director (SEPA). In response the Deputy Director (SEPA) submitted report dated 18.04.2025, stating that SEPA team conducted an inspection of M/S Technofeb Corporation and observed violation of provisions of the Sindh Environmental Protection Act-2014 and its Rules framed thereunder.
4. A hearing was fixed by the Investigating Officer on 22.07.2025. During hearing the Assistant Director Technical (SEPA) submitted a Site Visit (Joint Inspection) report alongwith photograph, confirming that noise levels exceeded the permissible limits prescribed under the SEQ's.

5. During the Investigation the representative of M/s H.H Technofeb Corporation, appeared and submitted an application dated 11.08.2025, stating that their Company is an Engineering firm engaged in steel structure Fabrication/erection for over past twenty-five years, and had no prior complaints. It was alleged that the complainant (Abdul Malik) had recently settled in this area, and had raised demands which were declined, leading to the filing of complaints. He further requested 30 days' time to close the ventilation gap on the side adjacent to the residential area and stated that he will request SEPA for re-measurement thereafter.
6. Subsequently the representative of M/s H.H Technofeb Corporation, appeared and submitted another application dated 18.09.2025 stating that the ventilation gap on the long stretch of the factory, which was directly adjacent to the residential area had been closed and requested to direct the SEPA to conduct noise reading test in the presence of both parties.
7. In pursuance, the SEPA submitted its report dated 13.01.2026 along-with SEQs slandered chart and photographs, stating that noise monitoring was conducted in the presence of both parties. The observation was as follow:
- i) **Within the premises:** Noise level recorded in the range of 91 dB to 98 dB, exceeding the permissible limits under the Sindh Environmental Quality Standards (SEQs).
 - ii) **Outside the Facility (nearby residential area):** Noise level were recorded in the range of 63 dB to 67 dB which were found to be within the permissible limits under the Sindh Environmental Quality Standards (SEQs).

FINDINGS

8. Following the intervention of this Institution the Agency took action and effectively addressed the complainant's grievance relating to noise pollution.

DECISION

9. In view of the above, the complaint stands redressed and disposed of accordingly. However, ***Regional Director, SEPA shall also ensure that the noise level in the factory premises shall also be brought down within the permissible limits.***

Given under my hand and seal of office.



Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated: 16th February, 2026